No. 05-20-00920-CV

---

**IN THE COURT OF APPEALS**
**FOR THE FIFTH DISTRICT OF TEXAS**
**AT DALLAS**

---

**IN RE: J.R.**

**J.R.**
Appellant,

v.

**THE STATE OF TEXAS**
Appellee.

---

On Appeal from the 305th Judicial District Court, Dallas County, Texas
Trial Court Cause No. JD-20-00313-X
The Honorable Cheryl Lee Shannon, Presiding

---

# APPELLANT'S OPENING BRIEF

---

Niles Illich
State Bar No. 24069969
Rebekah Perlstein
State Bar No. 24073080
Scott H. Palmer, P.C.
15455 Dallas Parkway, Suite 540
Addison, Texas 75001
Telephone: 972-204-5452
Email: Niles@scottpalmerlaw.com
Counsel for Appellant

**ORAL ARGUMENT REQUESTED**
**ACCELERATED APPEAL**

## IDENTITY OF PARTIES, COUNSEL, AND JUDGES

In accord with Rule 38.1 of the Texas Rules of Appellate Procedure, Appellant provides this Court with this complete list of all interested parties.

| | |
|---|---|
| **Trial Court** | 305th Judicial District Court of Dallas County, Texas |
| **Trial Court Judge** | The Honorable Cheryl Lee Shannon |
| **Appellant** | J.R. |
| **Trial Attorney for Appellant** | Scott H. Palmer<br>State Bar No. 00797196<br>15455 Dallas Parkway, Suite 540<br>Addison, Texas 75001 |
| **Appellate Counsel for Appellant** | Niles Illich<br>State Bar No. 24069969<br>Rebekah Perlstein<br>State Bar No. 24073080<br>Scott H. Palmer, P.C.<br>15455 Dallas Parkway, Suite 540<br>Addison, Texas 75001 |
| **Appellee** | The State of Texas |
| **Trial and Appellate Counsel for Appellee** | John Creuzot<br>Diana Herrera<br>State Bar No. 09529800<br>Dallas County District Attorney's Office<br>2600 Lone Star Dr.<br>Dallas, Texas 75212-6336 |

## CITATION TO THE RECORD

The reporter's record is cited to as: [10 RR 23] this hypothetical citation would be to volume 10, page 23. The clerk's record is cited to as: [CR 23] this hypothetical citation would be to page 23 of the one volume clerk's record.

## TABLE OF CONTENTS


Identity of Parties, Counsel, and Judges ..... ii

Citation to the Record ..... iii

Table of Contents ..... iv

Index of Authorities ..... v

Statement of the Case ..... 1

Statement Concerning Oral Argument ..... 1

Issues Presented ..... 1

Statement of Facts Relevant to Issues Presented ..... 2

D. Certification Hearing: The State's Case Focuses on the Charge ..... 2

E. The District Court's Order ..... 3

Summary of the Argument ..... 4

Standard of Review and Law for Juvenile Certification ..... 5

I. Standard of Review ..... 5

II. The Law Related to Waiver of Juvenile Court Jurisdiction ..... 7

Argument ..... 8

First Issue Presented ..... 8

I. Standard of Review ..... 8

II. Law ..... 8

Conclusion and Prayer ..... 11

Certificate of Compliance ..... 12

Certificate of Service ..... 12

## INDEX OF AUTHORITIES

### CASES


*Hidalgo v. State*, 983 S.W.2d 746 (Tex. Crim. App. 1999) ..... 7, 8

*In re A.K.*, No. 02-19-00385-CV, 2020 Tex. App. LEXIS 2801 (Tex. App.—Fort Worth Apr. 2, 2020, no pet.) ..... 9

*In re J.G.*, 495 S.W.3d 354 (Tex. App.—Houston [1st Dist.] 2016, pet. denied) ..... 9

*In re L.W.*, No. 05-19-00966-CV, 2020 Tex. App. LEXIS 1262 (Tex. App.—Dallas Feb. 13, 2020, no pet.) ..... 6

*Johnson v. State*, 954 S.W.2d 770 (Tex. Crim. App. 1997) ..... 6

*Kent v. United States*, 383 U.S. 541 (1966) ..... 7

*LMC Complete Automotive, Inc. v. Burke*, 229 S.W.3d 469 (Tex. App.—Houston [1st Dist.] 2007, pet. denied) ..... 6

*Moon v. State*, 410 S.W.3d 366 (Tex. App.—Houston [1st Dist.] 2013), aff'd, 451 S.W.3d 28 (Tex. Crim. App. 2014) ..... 10

*Moon v. State*, 451 S.W.3d 28 (Tex. Crim. App. 2014) .....5, 8, 9, 10

*R.E.M. v. State*, 541 S.W.2d 841 (Tex. Civ. App.—San Antonio 1976, writ ref'd n.r.e.) ..... 10

*Walker v. Packer*, 827 S.W.2d 833 (Tex. 1992) ..... 6


### STATUTES


Tex. Fam. Code § 54.02(a) ..... 9

Tex. Fam. Code § 54.02(d) ..... 10

Tex. Fam. Code § 54.02(f) ..... 8, 9

Tex. Fam. Code § 54.02(h) .....2, 4, 5, 8, 9, 11

Tex. Penal Code § 19.02(c) ..... 1

To the Honorable Justices of the Fifth Court of Appeals:

J.R., Appellant, presents this opening brief.

## STATEMENT OF THE CASE

The State of Texas charged Appellant, a juvenile, with Murder. Tex. Penal Code § 19.02(c). [CR 6]. The State filed its first petition for discretionary transfer on March 5, 2020. [CR 13]. The State filed an amended petition for discretionary transfer on March 24, 2020. [CR 25]. The juvenile court held a certification hearing on October 5, 2020. [CR 11]. The Court certified Appellant. [CR 92]. The case was transferred to the adult system. [CR 96]. This accelerated appeal follows. [CR 106].

## STATEMENT CONCERNING ORAL ARGUMENT

Appellant requests oral argument, but Appellant recognizes that this is an accelerated appeal, and that oral argument may not be feasible.

## ISSUES PRESENTED

Appellant presents two issues for appeal.

> **Issue One:** Section 54.02(h) and *Moon* require a juvenile court to specifically explain the facts that underly a decision to certify a juvenile. This requirement demands that a juvenile court show that the court engaged in a deliberative effort and made a reasoned decision. Here, the trial court's order failed to include any mention of [the

appellant's intellectual, medical, and conduct history, omitted from this transcription]. Did the trial court honor § 54.02(h) and *Moon*?

**Issue Two:** In his second issue, Appellant contends that the evidence is factually insufficient to find that Appellant was sufficiently sophisticated and mature to certify him as an adult. Specifically the overwhelming preponderance of the evidence showed that Appellant was unsophisticated and immature. Did the trial court err in finding that Appellant was mature and sophisticated and belongs in the adult criminal system to face a charge for Murder?

## STATEMENT OF FACTS RELEVANT TO ISSUES PRESENTED

[Parts A through C of the filed statement of facts (the appellant's background, the offense, and the investigation) describe a minor and are omitted from this transcription.]

### D. Certification Hearing: The State's Case Focuses on the Charge

J.R. was sixteen-years old at the time of the offense. [RR 37]. A petition was filed for the offense of Murder in juvenile court and the State sought to certify J.R. as an adult. [CR 6-14]. During the hearing, the evidence could not link any one person (and certainly not J.R.) to the gun. [RR 54]. It was clear that no one intended for [the complainant] to be shot. [RR 77]. [The testimony of juvenile probation about the appellant's diagnoses is omitted from this transcription.] [RR 103-104].

After the evaluations were completed, J.R. matched with a placement, Medlock. [RR 103]. Medlock was willing to accept J.R. and provide services that

would meet his needs. [RR 103]. Ms. Wright did not know whether an adult prison could provide services to J.R., but she did testify that J.R. would be at risk in an adult prison. [RR 105; 106]. No other witness testified about the mental-health services available in adult prisons. Ms. Wright testified that there would be no danger to the community if J.R. were sentenced to the Texas Juvenile Justice Department (TJJD). [RR 110]. She also testified that all the recommendations from the psychological assessment could be treated in TJJD. [RR 110]. It is clear from his record that while in detention J.R.'s conduct was exemplary. [RR 112].

The Court entered a Waiver of Jurisdiction and Order of Transfer to a Criminal District Court on October 7, 2020. [CR 96].

**E. The District Court's Order**

The juvenile court made rote findings that followed the standard for certification. [CR 96-99]. The laborious findings read:

> The reasons for this disposition are that: The Respondent is charged with Violating penal law of the grade of felony; the Respondent was fourteen (14) years old or older at the time he is alleged to have committed the offense; no adjudication hearing has been conducted concerning this alleged offense; [the findings that follow are omitted from this transcription]; the prospects of adequate protection of the public and the likelihood of rehabilitation of the child by use of procedures, services and facilities currently available to the juvenile court is remote; and it is desirable that all parties to the offense be tried in one court since the accomplices are adults.

[CR 97-98].

Appellant timely filed his notice of appeal and this appeal follows. [CR 106].

## SUMMARY OF THE ARGUMENT

The easiest resolution to this appeal is to recognize that the State charged J.R. with Murder, to acknowledge that he committed a prior robbery, and to find that he should be tried as an adult. But § 54.02 of the Family Code prevents this sort of easy resolution. Instead, § 54.02 requires a juvenile court to conduct an individualized and meaningful investigation into a juvenile before certifying him or her as an adult. And the caselaw specifically prohibits using only the alleged offense as a basis to certify. Strong evidence of this prohibition on the charge being determinative of certification is the fact that TJJD has a special unit for capital offenders. [2 RR 120]. If a capital offense automatically justified transfer, then there would be no need for a special unit within TJJD for capital offenders.

The Court of Criminal Appeals' opinion in *Moon* was transformative. It required, among other things, for a juvenile court to set out its deliberative process in a written order (§ 54.02(h) order) when the juvenile court has decided to certify a juvenile as an adult. Further, *Moon* limited a sufficiency review to the facts set out in the § 54.02(h) order. In requiring the juvenile court to set out its deliberative process and then limiting a sufficiency review to that order, *Moon* required the

§ 54.02(h) order to include deliberation on the evidence that supported and weighed against certification. Here the § 54.02(h) order includes none of the evidence related to [the mitigating evidence listed in the filed brief, omitted from this transcription].

Instead, the § 54.02(h) order contained a rote iteration of J.R.'s bad acts. In failing to include the Court's deliberative process on the evidence that weighed against certification, the Court failed to honor § 54.02(h) or *Moon*.

## STANDARD OF REVIEW AND LAW FOR JUVENILE CERTIFICATION

The standard of review for Appellant's two issues is identical. To avoid unnecessary repetition, Appellant provides one standard of review that applies to all of his issues.

### I. Standard of Review

This Court recently explained the standard of review, writing:

> Our review of a transfer order is two-pronged. First, we review the juvenile court's specific findings of fact concerning the section 54.02(f) factors under a 'traditional sufficiency of the evidence review.' *Moon*, 451 S.W.3d at 47. When reviewing the legal sufficiency of the evidence, we credit evidence favorable to the challenged finding and disregard contrary evidence unless a reasonable fact finder could not reject the evidence. If there is more than a scintilla of evidence that supports the finding, then the proof is legally sufficient and the challenge fails. *Id.* [The remainder of the quotation is omitted from this transcription.]

*In re L.W.*, No. 05-19-00966-CV, 2020 Tex. App. LEXIS 1262, at *27-28 (Tex. App.—Dallas Feb. 13, 2020, no pet.).[1]

Related to the abuse of discretion standard, if a court fails to correctly analyze the law, makes an error of law, or misapplies the law to the facts, it commits an abuse of discretion. *Walker v. Packer*, 827 S.W.2d 833, 840 (Tex. 1992). The abuse of discretion standard is equivalent to a de novo review because the court has no discretion to misapply the law. *Id.*

A court also commits an abuse of discretion if it makes findings of fact supported by legally or factually insufficient evidence. *LMC Complete Automotive, Inc. v. Burke*, 229 S.W.3d 469, 483 (Tex. App.—Houston [1st Dist.] 2007, pet. denied). Where, as here, a court's decision necessarily involves the balancing of multiple factors "[r]eview of these individual factors necessarily involves fact determinations and legal conclusions. The balancing test as a whole, however, is a purely legal question. Legal questions are reviewed de novo." *Johnson v. State*, 954 S.W.2d 770, 771 (Tex. Crim. App. 1997). Reversal is required if the court below engages in a flawed analysis of any one of the balancing factors. *Id.*

[1] Lexis and Westlaw paginate unpublished opinions differently. Appellant uses the pagination from Lexis.

## II. The Law Related to Waiver of Juvenile Court Jurisdiction

The United States Supreme Court in *Kent v. United States*, 383 U.S. 541, 556, 86 S. Ct. 1045 (1966), stated "[i]t is clear beyond dispute that the waiver of jurisdiction is a 'critically important' action determining vitally important statutory rights of the juvenile." The Court characterized the "decision as to waiver of jurisdiction and transfer of the matter to the District Court [as] potentially as important to petitioner as the difference between five years imprisonment and a death sentence." *Id.* at 557. The very act of a transfer to a criminal district court carries with it the deprivation of the right to be detained in the protective environment of the Juvenile Justice Center pending trial, and after trial once convicted, and the rehabilitative and educational programs that would be available under the Family Code if the proceeding were in a juvenile court.

The Texas Court of Criminal Appeals echoed *Kent*, stating: "transfer to criminal district court for adult prosecution is 'the single most serious act the juvenile court can perform . . . because once waiver of jurisdiction occurs, the child loses all protective and rehabilitative possibilities available.'" *Hidalgo v. State of Texas*, 983 S.W.2d 746, 755 (Tex. Crim. App. 1999). The *Hidalgo* Court noted that "transfer was intended to be used only in exceptional cases" and that "[t]he philosophy was that, whenever possible, children should be protected and

rehabilitated rather than subjected to the harshness of the criminal system because children, all children are worth redeeming." *Id.*

## ARGUMENT

### First Issue Presented

> Section 54.02(h) and *Moon* require a juvenile court to specifically explain the facts that underly a decision to certify a juvenile. This requirement demands that a juvenile court show that the court engaged in a deliberative effort and made a reasoned decision. Did the trial court honor § 54.02(h) and *Moon*?

### *I. Standard of Review*

Appellant incorporates the standard of review from the start of this brief into this issue in full.

### *II. Law*

Section 54.02 of the Family Code conditions a juvenile court's discretion to waive jurisdiction. Tex. Fam. Code § 54.02(f).

While the juvenile court does not demand that a Court find that every factor in § 54.02(f) support transferring the case, *Moon*, 451 S.W.3d at 28, 47 & n.78 (citing *Hidalgo*, 983 S.W.2d at 754), the Court of Criminal Appeals and § 54.02 require the juvenile court to consider, at a minimum,

> (1) whether the alleged offense was against person or property, with greater weight in favor of transfer given to offenses against the person; (2) the sophistication and maturity of the child; (3) the record and previous history of the child; and (4) the prospects of adequate

> protection of the public and the likelihood of the rehabilitation of the child by use of procedures, services, and facilities currently available to the juvenile court.

*Id.* at 38 (quoting § 54.02(f)). The juvenile court must also "make specific findings of fact regarding each of the section 54.02(f) factors." *In re J.G.*, 495 S.W.3d 354, 367 (Tex. App.—Houston [1st Dist.] 2016, pet denied); *see Moon*, 451 S.W.3d at 47; 49-50.

Mitigation evidence falls within those factors and the juvenile court is required to consider this evidence. *In re A.K.*, No. 02-19-00385-CV, 2020 Tex. App. LEXIS 2801, at *21 (Tex. App.—Fort Worth Apr. 2, 2020, no pet.). Mitigation evidence must be included in a § 54.02(h) opinion because a sufficiency review is limited to "the facts that the juvenile court expressly relied upon, as required to be explicitly set out in the juvenile transfer order under Section 54.02(h)." *Moon*, 451 S.W.3d at 50.

Section 54.02 establishes that a court has no discretion to waive jurisdiction except when the alleged offense is a felony and the child is at least a certain age—14 or 15, depending on the specific type of felony alleged. Tex. Fam. Code §§ 54.02(a)(1), (2). The Court must then decide whether there is probable cause to believe the child committed the alleged offense. *Id.* § 54.02(a)(3). But even a finding of probable cause that a juvenile committed a first-degree felony under § 54.02(a) does not justify automatic waiver because such an approach would

render §§ 54.02(d) and (f) superfluous. *See Moon v. State*, 410 S.W.3d 366, 375 (Tex. App.—Houston [1st Dist.] 2013), *aff'd*, 451 S.W.3d 28 (Tex. Crim. App. 2014) (citing *R.E.M. v. State*, 541 S.W.2d 841, 846 (Tex. Civ. App.—San Antonio 1976, writ ref'd n.r.e.)) ("We find nothing in the statute which suggests that a child may be deprived of the benefits of our juvenile court system merely because the crime with which he is charged is a 'serious' crime.'").

These factors go directly to whether the welfare of the community requires criminal proceedings or whether that welfare is better served by rehabilitation:

> We find nothing in the statute which suggests that a child may be deprived of the benefits of our juvenile court system merely because the crime with which he is charged is a "serious" crime. . . . If, despite the gravity of the charged offense, the child can be successfully rehabilitated by resort to the facilities available to juvenile court, it is clear that such rehabilitation will promote the "welfare of the community" at least as effectively as criminal prosecution with no prospects of rehabilitation, while, at the same time, it accords to the child the beneficial results which our Legislature has concluded can be achieved by protecting youthful offenders from the stigma and demoralizing effects of criminal prosecution.

*R.E.M.*, 541 S.W.2d at 846.

[The application of law to fact, the second issue, and the remainder of the argument are omitted from this transcription.]

## CONCLUSION AND PRAYER

J.R. asks this Court to:

- Find that the trial court abused its discretion and failed to honor either § 54.02 or *Moon* and their requirement that the juvenile court explain its deliberative process in a § 54.02(h) opinion;
- Find that the evidence was factually insufficient to support the findings that J.R. was sufficiently mature and sophisticated to certify and that the trial court abused its discretion in certifying J.R.;
- Vacate the certification order; and,
- Any and all other relief to which Appellant might be entitled.

Respectfully submitted,

Scott H. Palmer, P.C.

/s/ Niles Illich
Niles Illich
State Bar No. 24069969

/s/ Rebekah Perlstein
Rebekah Perlstein
State Bar No. 24073080

15455 Dallas Parkway, Suite 540
Addison, Texas 75001
Direct: (972) 204-5452
Facsimile: (972) 922-9900
Email: Niles@scottpalmerlaw.com
Counsel for Appellant

## CERTIFICATE OF COMPLIANCE

This is to certify that this brief complies with Rule 9.4 of the Texas Rules of Appellate Procedure because it is computer generated and contains 2160 words, excluding the parts of the brief exempted by Rule 9.4(i)(1). This brief also complies with the typeface requirements of Rule 9.4(e) because it has been prepared in a conventional typeface of 14 points for the text and 12 points for the footnotes.

/s/ Niles Illich
Niles Illich

## CERTIFICATE OF SERVICE

This is to certify that on December 9, 2020 a true and correct copy of this brief was served on lead counsel for all parties in accord with Rule 9.5 of the Texas Rules of Appellate Procedure. Service was accomplished through the electronic filing manager and electronic mail as follows:

Jennifer Balido, DCDAappeals@dallascounty.org

/s/ Niles Illich
Niles Illich